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County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV33193 Hearing Date: August 13, 2026 Dept: 511

Tentative Ruling

Judge Upinder S. Kalra, Department 511

HEARING DATE: August 13, 2026

CASE NAME: Jeremy Alan Hale v. General Motors LLC

CASE NO.: 25STCV33193

MOTION FOR ATTORNEYS' FEES AND COSTS

MOVING PARTY: Plaintiff Jeremy Alan Hale

RESPONDING PARTY(S): Defendant General Motors, LLC

REQUESTED RELIEF:

1. An order awarding $12,967.50 in attorneys' fees, $2,500.00 anticipated additional attorneys' fees, $682.74 in costs, $525.00 in anticipated costs, and $6,483.75 0.5 lodestar multiplier for a total of $16,675.24 in attorneys' fees and costs.

TENTATIVE RULING:

1. Motion for attorneys' fees is GRANTED, as modified, in the amount of $10,080 for attorneys' fees and $682.74 in costs.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On November 13, 2025, Plaintiff Jeremy Alan Hale (Plaintiff) filed a Song-Beverly complaint against General Motors LLC with six causes of action for: (1) violation of Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); (3) Violation of Civ. Code § 1793.2(a)(3); (4) breach of express written warranty; (5) breach of implied warranty of merchantability; and (6) violation of Tanner Consumer Protection Act.

According to the complaint, Plaintiff purchased a 2023 Chevrolet Bolt EUV on February 11, 2023 (the Vehicle) from Defendant which developed defects that Defendant could not conform to the applicable warranties.

On January 2, 2026, Defendant filed an answer.

On April 13, 2026, Plaintiff filed notice of settlement of entire case.

On May 27, 2026, Plaintiff filed the instant motion for attorneys' fees and costs. On July 31, 2026, Defendant filed an opposition. On August 5, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

A prevailing buyer in an action under Song-Beverly "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."¿ (Civ. Code, § 1794(d).) By¿permitting¿buyers who prevail under Song-Beverly to recover their attorneys' fees, "our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible." (Murillo v. Fleetwood Enterprises, Inc.

(1998) 17 Cal.4th 985, 994.)¿¿¿¿¿¿

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The prevailing party has the burden of showing that the requested attorney fees are reasonable. (Robertson v. Fleetwood Travel Trailers of California Inc.¿(2006) 144 Cal.App.4th 785, 817.) The party seeking attorney fees “is not necessarily entitled to the compensation of the value of attorney services according to [his or her] own notion or to the full extent claimed¿. . . .”¿ (Levy v. Toyota Motor Sales, USA, Inc.¿(1992) 4 Cal.App.4th 807, 816.) If the “time expended or the monetary charge being made for the time expended are not reasonable under all circumstances, then the court must take this into account and award fees in a lesser¿amount.”¿(Nightingale v. Hyundai Motor America¿(1994) 31 Cal.App.4th 99, 104.)¿¿¿¿¿¿

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A calculation of attorneys’ fees for a Song-Beverly action begins with the “lodestar” approach, under which the Court fixes the lodestar at “the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Margolin v. Regional Planning Com.¿(1982) 134 Cal.App.3d 999, 1004-1005.) “California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Ibid.)¿¿¿¿¿

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“It is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.”¿ (Morris v. Hyundai Motor America¿(2019) 41 Cal.App.5th 24, 39.) It is also¿appropriate to¿reduce a fee award based on “inefficient or duplicative efforts” in the billing record. (Id. at p. 38.) However, the analysis must be “reasonably specific” and cannot rely on general notions about the fairness of the fee award. (Kerkeles¿v. City of San Jose¿(2015) 243 Cal.App.4th 88, 102.) Moreover, in conducting the analysis, courts are not¿permitted¿to tie any reductions in the fee¿award¿to some proportion of the¿buyer’s damages¿recovery. (Warren v. Kia Motors America, Inc.¿(2018) 30 Cal.App.5th 24, 39.)¿¿¿¿¿¿

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The lodestar figure may also be adjusted, based on consideration of factors specific to the case,¿in order to¿fix the fee at¿the¿fair¿market value¿for the legal services provided. (Serrano v. Priest¿(1977) 20 Cal.3d 25, 49;¿PLCM Group, Inc. v. Drexler¿(2000) 22 Cal.App.4th 1084, 1095.)¿The factors considered in¿determining¿the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill¿required¿and employed to handle the case, the attention given, the success or failure,¿and other circumstances in the case. (EnPalm, LLC v.¿Teitler¿Family Trust¿(2008) 162 Cal. App. 4th 770, 774 (emphasis in original).)¿A negative modifier was¿appropriate when¿duplicative work had been performed. (Thayer v. Wells Fargo Bank,¿N.A.¿(2001) 92 Cal.App.4th 819.)¿¿

ANALYSIS:

Prevailing Party

Here, Plaintiff is the prevailing party because the CCP § 998 offer he accepted on March 31, 2026 provides such. (Declaration of Peter Maissian (Maissian Decl.) ¶ 15, Exhibit A.)

Lodestar Fees

The lodestar method looks at the time spent on a matter multiplied by the reasonable hourly rate. (Serrano, supra¿20 Cal.3d at 49).¿The two-step process begins with the lodestar method, which is the time spent on the matter multiple by the hourly rate. After the lodestar method, the second step is¿determining¿whether a multiplier should be applied. The factors that¿Courts¿look at to determine if a multiplier is reasonable are: 1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum v.

Moses¿(2001) 24 Cal.4th 1122, 1132).¿¿¿¿

Reasonableness
of Hourly Rate

Plaintiff seeks to recover the following hourly rates: $525, $625, and $425.

GM does not challenge the hourly rates.

The trial court has discretion to “determine the hourly rates that should be used in the lodestar calculus.” (Morris, supra,¿41 Cal.App.5th at p. 35.)¿It may do so¿by relying “on its own knowledge and familiarity with the legal market,” “the experience, skill, and reputation of the attorney requesting fees,” “the difficulty or complexity of the litigation to which that skill was applied,” and “affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (Id.¿at p. 41.)¿

Here, the hourly rates requested are reasonable based on the hourly rate of similarly situated attorneys in the Los Angeles area. Notably, Plaintiff provided evidence of the attorneys’ rates, experience and involvement with the case as well as comparative literature rooting these rates in the consumer law practice. (Maissian Decl. ¶¶ 23-42.)

Thus, the hourly rates are¿appropriate.¿However, billing at¿premium rates¿comes with the expectation that the attorney¿also¿work¿in an efficient manner that reflects the premium paid for his or her services. The court considers this fact in addressing the reasonableness of the hours¿expended.¿¿

Reasonableness
of Hours Spent

Plaintiff seeks to recover a total of 24.3 hours on this matter.[1]
(Miassian Decl., Exhibit B.)

GM argues the hours are woefully inflated since the work performed is solely templated work, consist of pre-litigation clerical and administrative time, duplicative pre-litigation research and client communications, and excessive time for experienced attorneys. They seek to strike 15.5 hours ($8,547.50) from the bill.

Plaintiff replies that GM generally lacks evidentiary support for their position, the fees incurred required attorney experience and work to complete, and the fees were reasonably incurred as accrued rather than in hindsight. Plaintiff provides an updated fee bill for an additional 3.2 hours of work to review the opposition and prepare a reply. (Supplemental Declaration of Peter Maissian, Exhibit 1.)

Although a verified fee bill is “prima facie evidence the costs, expenses and services listed were necessarily incurred,” (Hadley v. Krepel¿(1985) 167 Cal.App.3d 677, 682), ultimately,¿Counsel¿still has the burden to¿demonstrate¿the reasonableness of charges.¿(Mikhaeilpoor,¿supra,¿48 Cal.App.5th¿at p.¿247.)¿

“A trial court may not rubber stamp a request for attorney¿fees, but¿must determine the number of hours reasonably expended.” (Morris, supra,¿41 Cal.App.5th at p. 38 [citing¿Donahue v. Donahue¿(2010)¿182 Cal.App.4th 259, 271.])¿In their evaluation, courts¿consider¿whether the case was overstaffed, how much time the attorney spent on¿particular claims, and whether the hours were¿reasonably expended. (Ibid.) In short, courts will not allow “padding” in the form of inefficient or duplicative efforts. (Ibid.; see also¿Ketchum v. Moses¿(2001) 24 Cal.4th 1122, 1132.)¿“Plainly, it is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant¿inefficiencies and inflated fees resulted.” (Morris, supra,¿41 Cal.App.5th at p. 39.)¿¿¿

Here, the total hours spent on this straightforward lemon law matter is unreasonable. To start,¿Plaintiff¿bills at counsel’s premium rate regardless of task type. (Miassian Decl.,¿Exhibit¿B.) For example, Plaintiff 1.2 hours for “initial file organization, do the repurchase calc, prep the RO summary, and list the defects, for preparation of drafting complaint” which combines both clerical work (file organization) with legal secretarial/paralegal work (definitions for preparation of complaint drafting) and then another two hours of premium attorney time to draft the complaint. The complaint was a template that modified a total of four paragraphs to identify the Plaintiff, Defendant, vehicle and eight defects. These¿represent¿unreasonable use of premium attorney resources¿(i.e., overstaffing)¿and could have been completed at a paralegal rate.¿(Morris, supra,¿41¿Cal.App.5th at p. 39.)¿As another example, Plaintiff seeks two hours of premium time for deposition preparation for Plaintiff after receiving a 998 offer that Plaintiff appear to have agreed to the same date for a Deposition that Plaintiff had already filed a written objection. In addition, 25 % of the hours sought to recover were to prepare this straightforward fee motion. Considering counsel's professed expertise in this area, these are not novel or complex issues requiring extended time. (Morris, supra,¿41 Cal.App.5th at p. 37.)¿

Therefore, the Court finds based upon its experience and knowledge of this type of litigation, the lack of novelty and complexity of this case, and, to align with the hours that should reasonably have been incurred, a reasonable lodestar amount is $10,080. To be clear, the Court makes this finding based upon its experience and knowledge of this type of litigation, the lack of novelty and complexity of this case, and the professed specialization of Plaintiffs' counsel.

Accordingly, the court GRANTS Plaintiffs' motion for attorneys' fees, as modified, for a total of $10,080.

Costs

Plaintiff seeks to recover $682.74 in costs plus $525.00 in anticipated costs.

GM argues there is no basis for the anticipated costs and the requested costs lack foundational support.

Plaintiff replies that GM did not identify any cost as fabricated, duplicated, or unrelated to this litigation.

"Except as otherwise¿expressly¿provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) (Emphasis added.) Code of Civil Procedure section 1032, subdivision (a) defines a "prevailing party" as "[1] the party with a net monetary recovery, [2] a defendant in whose favor dismissal is entered, [3] a defendant where neither plaintiff nor defendant obtains any relief, and [4] a defendant as against those plaintiffs who do not recover any relief against that defendant.”¿¿¿¿¿

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Costs are allowable if incurred,¿whether or not¿paid. (Code Civ. Proc., § 1033.5, subd. (c)(1).) Costs must also be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and must be reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)¿

Here, the costs are warranted, in part. First, the anticipated $525.00 in costs is not allowed because they have not been incurred. Next, the remaining costs are recoverable because the parties so agreed. (Miassian Decl., Exhibit A [998 Offer].) Those costs consist of filing fees, service of process fees, and contract attorney appearance fee. (Id. at Exhibit B.) These costs fall within the scope of recoverable costs contemplated by statute. (CCP § 1033.5(a)(1), (4)(B), (16).)

Therefore, the court GRANTS Plaintiff’s motion for costs of $682.74.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for attorneys’ fees is GRANTED, as modified, in the amount of $10,080 for attorneys’ fees and $682.74 in costs.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 13, 2026 ___________________________________ Upinder S. Kalra

Judge
of the Superior Court

[1]
The court declines to award the 0.5 multiplier on this straightforward lemon law case. While Plaintiff's counsel obtained excellent results, this was a straightforward lemon law action that settled shortly within six months, shortly after the initial case management conference, without any formal mediation, and before any motion was filed or deposition taken. There are simply no factors in support of a multiplier. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).) This was a relatively straightforward reasonably routine lemon law case, an area in which Plaintiffs' counsel specializes, there were not any novel or complex issues that were presented. Thus, the contingent risks, skill, and difficulty Plaintiffs' attorneys assert are absorbed by their hourly rates. (See Robertson v. Fleetwood Travel Trailers of California. Inc. (2006) 144 Cal.App.4th 785, 822.) Stated otherwise, Plaintiff has failed it in its burden to establish that the Ketchum factors warrant a positive multiplier. Accordingly, Plaintiffs' request for a lodestar multiplier is denied.